

24STCV00515 24STCV00515

County: los-angeles

Division: Civil Law and Motion

Department: 513

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Case Number: 24STCV00515 Hearing Date: July 2, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

RAFAEL CISNEROS

;

Plaintiff,

vs.

GENERAL MOTORS, LLC

, et al.;

Defendants.

Case

No.:

24STCV00515

Hearing

Date:

July
2, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

plaintiff's motion for attorneys' fees AND
costs

MOVING PARTY: Plaintiff Rafael Cisneros

RESPONDING PARTIES: Defendants General Motors, LLC

Motion for Attorneys' Fees and Costs

The court
considered the moving, opposition, and reply papers filed in connection with
this motion.

DISCUSSION

Plaintiff Rafael Cisneros ("Plaintiff") moves the court for an order
awarding attorney fees, costs, and expenses on the grounds that Plaintiff is
the prevailing party.

First, the court finds—and Defendant does not dispute—that Plaintiff
is entitled to recover attorney's fees and costs from Defendant pursuant to the
Song-Beverly Act and the parties' settlement.
(Barry Decl., Ex. 3., Offer to Compromise; Civ. Code, § 1794, subd. (d) ["If the buyer prevails
in an action under this section, the buyer shall be allowed by the court to
recover as part of the judgment a sum equal to the aggregate amount of costs
and expenses, including attorney's fees based on actual time expended,
determined by the court to have been reasonably incurred by the buyer in
connection with the commencement and prosecution of such action"].)

Although Defendant argues that the motion is untimely served, the court finds that the motion was timely served because it was served on February 23, 2026, the action was deemed to be dismissed on October 9, 2025, pursuant to California Rules of Court rule 3.1385(c)(2), and the court actually ordered the case dismissed on October 14, 2025. Under California Rules of Court rule 3.1702(b), “[a] notice of motion to claim attorney’s fees for services up to and including the rendition of judgment in the trial court—including attorney’s fees on an appeal before the rendition of judgment in the trial court—must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case or under rules 8.822 and 8.823 in a limited civil case.” (Cal. Rules of Court, rule 3.1702(b)(1).) The time for a notice of appeal is the earliest of: “(A) 60 days after the superior court clerk serves on the party filing the notice of appeal a document entitled ‘Notice of Entry’ of judgment or a filed-endorsed copy of the judgment, showing the date either was served; (B) 60 days after the party filing the notice of appeal serves or is served by a party with a document entitled ‘Notice of Entry’ of judgment or a filed-endorsed copy of the judgment, accompanied by proof of service; or (C) 180 days after entry of judgment.” (Cal. Rules of Court, rule 8.104(a)(1).)

Here, Plaintiff filed a notice of conditional settlement which stated that a request for dismissal would be filed no later than August 27, 2025 (Notice of Settlement of Entire Case, filed May 29, 2025), and 45 days after that date is October 9, 2025, the date on which dismissal should be entered pursuant to California Rules of Court rule 3.1385(c)(2). (Cal. Rules of Court, rule 3.1385(c)(2) [“If the plaintiff or other party required to serve and file a request for dismissal within 45 days after the dismissal date specified in the notice does not do so, the court must dismiss the entire case unless good cause is shown why the case should not be dismissed”].) The motion was served 137 days after October 9, 2025, and thus the motion was timely served.

Second, the court finds that Plaintiff has established, as to the attorney’s fees incurred to commence and prosecute this action and to prepare the pending fee motion, a lodestar figure of \$36,337.50.

“[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly

rate. . . .” The reasonable hourly rate is that prevailing in the community for similar work.” The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided.” (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095 (internal citations omitted); Reck v. FCA US LLC (2021) 64 Cal.App.5th 682, 691 [“To determine a reasonable attorney fee award, the trial court applies the lodestar method”].) “[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.” (Horsford v. Board of Trustees of California State Univ. (2005) 132 Cal.App.4th 359, 396.)

The court finds that the reasonable hourly rates for the legal staff that performed work in this action are as follows: (1) \$500 for attorney Rabeieian; (2) \$675 for attorney Barry; and (3) \$500 for attorney Matera. (Barry Decl., ¶¶ 16, 21-77; Rabeieian Decl., ¶¶ 3-40; Matera Decl., ¶¶ 3-33.)

The court has considered (1) the billing records of Plaintiff's counsel, and (2) the objections to specific entries in Defendant's opposition papers. (Opp., pp. 6:11-9:20.) The court finds that Plaintiff's counsel reasonably expended a total number of 68.3 hours (12.5 hours for attorney Barry, 53.2 hours for attorney Rabeieian, and 2.6 hours for attorney Matera) to commence and prosecute this action and to prepare this motion.

The court therefore finds that Plaintiff has established a lodestar figure of \$36,337.50 ((12.5 hours x Barry's \$675 hourly rate = \$8,437.50) + (53.2 hours x Rabeieian's \$500 hourly rate = \$26,600) + (2.6 hours x Matera's \$500 hourly rate = \$1,300)).

Third, the court finds that (1) Plaintiff has supported their request for costs in the amount of \$2,502.68, and (2) Defendant failed to contest these costs by filing and serving a motion to tax or strike costs. (Civ. Code, § 1794, subd. (d); Cal. Rules of Ct., rule 3.1700, subd. (b)(1); Cal. Rules of Court rule, 3.1700(b) [“Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6(a)(3)”].)

ORDER

The court grants plaintiff Rafael
Cisneros's motion for attorneys' fees, costs, and expenses as follows.

Pursuant to Civil Code section 1794, subdivision (d), the court orders
that plaintiff Rafael Cisneros shall recover from defendant General Motors, LLC
attorney's fees, costs, and expenses in the total amount of \$38,840.18,
consisting of \$36,337.50 in attorney's fees and \$2,502.68 in costs and
expenses.

The court orders plaintiff Rafael
Cisneros to give notice of this ruling.

IT IS SO ORDERED.

DATED: July 2, 2026

Robert
B. Broadbelt III

Judge
of the Superior Court